

First Statutes of the Indian Institute of Petroleum and Energy, 2018

Source: <https://indiankanoon.org/doc/22996060/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

First Statutes of the Indian Institute of Petroleum and Energy, 2018

UNION OF INDIA

India

First Statutes of the Indian Institute of Petroleum and Energy, 2018

Rule FIRST-STATUTES-OF-THE-INDIAN-INSTITUTE-OF-PETROLEUM-AND-ENERGY-2018 of 2018

Published on 17 December 2018

Commenced on 17 December 2018

[This is the version of this document from 17 December 2018.]

[Note: The original publication document is not available and this content could not be verified.]

First Statutes of the Indian Institute of Petroleum and Energy, 2018

Published vide Notification No. G.S.R. 1216(E), dated 17.12.2018

G.S.R. 1216(E). - In exercise of the powers conferred by section 33 of the Indian Institute of Petroleum and Energy Act, 2017 (

3 of 2018

), the Central Government hereby frames the First Statutes of the Indian Institute of Petroleum and Energy, Visakhapatnam, namely:

1.

Short title and Commencement.

(1)

These statutes may be called the First Statutes of the Indian Institute of Petroleum and Energy, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these First Statutes, unless the context otherwise requires, -

(a)

"Act" means the Indian Institute of Petroleum and Energy Act, 2017 (3 of 2018

);

(b)

"authorities" means the authorities of the Institute;

(c)

"Deans" means the Deans of the Institute;

(d)

"Finance Committee" means the Finance Committee of the Institute constituted under these Statutes 10;

(e)

"Officers" means officers of the Institute;

(f)

"Ordinances" mean the Ordinances of the Institute made under section 35 of the Act;

(g)

"Professors" means professors of the Institute.

(h)

"student" means a student admitted to a prescribed programme of the Institute through the laid down procedure and whose name is borne on the rolls of Institute;

(2)

Words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Meetings of the General Council.

(1)

The General Council shall meet at least once in a calendar year on a date to be fixed by the Chairperson.

(2)

The chairperson of the Council may convene annual meeting, special meetings of the General Council in his discretion to consider any special matter as regards the Institute.

(3)

One-third of General Council including the Chairperson, fraction being rounded off to the next higher number, shall be the quorum for a meeting of the Council.

(4)

The Chairperson, if present, shall preside over every meeting of the Council:

Provided that in the absence of the Chairperson, the members present shall elect a member from amongst themselves to preside over meeting.

(5)

The Secretary of the Council shall serve a written notice of every meeting to every member at least three weeks before the date of the meeting, mentioning therein the place, date and time of the meeting:

Provided that the Chairperson may convene emergency meeting to consider special matters:

Provided further that -

(a)

whenever notice of a meeting is required to be given to any person under the provisions of the Act, or of these statutes, it shall be given in writing to such person either personally or by serving a copy thereof by registered mail or speed post or courier service charges pre-paid, or by facsimile or electronic mail, to the person's address, electronic address, or

facsimile number appearing on the books of the Institute;

(b)

If the notice is served by mail, it shall be deemed to have been given to the person entitled thereto when deposited in the Indian Post and Telegraph mail or with a courier service for delivery to that person;

(c)

a notice of meeting shall specify the place, date, and time of the meeting and any other information required by the Act or these Statutes.

(6)

The agenda for all meetings, except those convened at short notice, as referred to in sub-statute (4), shall be sent to all members of the Council at least seven days before the date of the meeting. Provided that in case of emergency meetings, mere mention of the special issues to be considered in the notice convening the meeting shall suffice in lieu of the detailed item agenda note.

(7)

The details of any item that a member wishes to raise must reach the Secretary of the Council at least ten days before the meeting. The Chairperson may, however, permit inclusion of any item for which due notice has not been received.

(8)

The decisions of the Chairperson with regard to all questions of procedure shall be final.

(9)

All questions considered at meetings of the Council shall be decided by means of a consensus or an affirmative vote of a majority of members, present including the Chairperson. If the votes be equally divided, the Chairperson shall have and will cast a second vote.

(10)

The minutes of the proceedings of the General Council shall be drawn up by the Secretary of the Council and circulated to all members of the Council. The minutes, along with any comments or amendments suggested by the members shall be placed for confirmation at the next meeting of the Council. After the minutes are confirmed and signed by the Chairperson, they shall be recorded in a minute book.

(11)

Any resolution except such as may be placed before a meeting of the Council may be adopted by circulation among all its members and any resolution so circulated and adopted by a majority of the members who have signified their approval or disapproval of such a resolution shall be as effective and binding as if such a resolution has been passed at a meeting of the Council.

4.

The Board.

(1)

A member of the Board shall cease to be a member of the Board if he-

(a)

dies, or

(b)

resigns his/her membership, or

(c)

becomes of unsound mind, or

(d)

becomes insolvent, or

(e)

is convicted in a criminal offence involving moral turpitude, or

(f)

is removed by the nominating organization from membership of the Board, or

(g)

other than in the case of the Director, accepts a full time appointment in the Institute, or

(h)

fails to attend three consecutive meetings of the Board without leave of absence from the President.

(2)

A member of the Board may resign his membership by a letter addressed to the President who shall forward it to the concerned nominating authority with his recommendation, and the resignation shall take effect from the date it is accepted by the nominating authority. In case the President desires to resign, he shall address his letter of resignation to the Central Government, and his resignation shall be effective from the date it is accepted by the Central Government.

(3)

The Registrar of the Institute shall act as the Secretary of the Board in an ex-officio capacity.

(4)

The body or individuals entitled to nominate representatives on the Board shall be invited by the Secretary of the Board to do so within a reasonable time not ordinarily exceeding eight weeks from the date of issue of such invitation. The same procedure shall be followed for filling casual vacancies of the Board.

(5)

The President in his capacity as Chairperson of the Board shall have the power to invite any person being a member of the Board of Governors to attend a meeting of the Board but such invitee shall not be entitled to vote at such a meeting.

5.

Meetings of The Board.

(1)

The Board shall ordinarily meet four times during a calendar year. However, there shall not be a gap of more than three months between two consecutive meetings.

(2)

The meetings of the Board shall be convened by the President in his/her capacity as the Chairperson of the Board either on his/her own initiative or on the request of the Director or on a requisition signed by not less than one-third of the present members of the Board including the President with any fraction rounded off to the next higher number.

(3)

One-third of the Board including the President, fraction being rounded off to the next higher number, shall be the quorum for a meeting of the Board.

(4)

All questions considered at the meetings of the Board shall be decided by means of a consensus or an affirmative vote of a majority of the members, present including the President. If the votes were equally divided, the President shall have a second or casting vote.

(5)

The President, if present, shall preside over the meeting of the Board:

Provided that in the absence of the President, the members present shall elect a member from amongst themselves to preside at the meeting.

(6)

The Registrar shall issue a written notice of every meeting in his/her capacity as the Secretary of the Board to every member at least three weeks before the date of the meeting. The notice shall state the place, date and time of the meeting:

Provided that the President may convene a special or emergency meeting of the board at short notice to consider urgent or special issues:

Provided further that (a) whenever notice of a meeting is required to be given to any person under the provisions of the Act, or of these Statutes, it shall be given in writing to such person either personally or by serving a copy thereof by registered mail or speed post or courier service charges prepaid, or by facsimile or electronic mail, to the person's address, electronic address or facsimile number appearing on the books of the Institute; (b) If the notice is sent by mail, it shall be deemed to have been given to the person entitled thereto when deposited in the Indian Post and Telegraph mail or with a courier service for delivery to that person; (c) a notice of meeting shall specify the place, date, and time of the meeting and any other information required by the Act or these Statutes.

(7)

The agenda for all meetings, except those convened at short notice as referred to in sub-statute (6), shall be sent to all members of the Board at least seven days before the date of the meeting:

Provided that in the case of special or emergency meetings, mere mention of the special issue shall suffice in lieu of the

agenda. The agenda may be sent electronically.

(8)

The Notices of motions for inclusion of any item on the agenda must reach the Secretary of the Board at least ten days before the meeting:

Provided that the President may, permit inclusion of any item for which due notice has not been received.

(9)

The ruling of the President with regard to all questions of procedure shall be final.

(10)

The minutes of the proceedings of a meeting of the Board shall be drawn up by the Registrar of the institute in his/her capacity as Secretary of the Board and circulate to all members of the Board. The minutes, along with any amendments suggested, shall be placed for confirmation at the next meeting of the Board. After the minutes are confirmed and signed by the President, they shall be recorded in a minutes' book.

(11)

The minutes' book shall be kept open for inspection of the members of the Board at all times during office hour.

(12)

Any resolution except such as may be placed before a meeting of the Board may be adopted by circulation among all its members and any resolution so circulated and adopted by a majority of the members who have signified their approval or disapproval of such a resolution shall be as effective and binding as if such a resolution has been passed at a meeting of the Board.

(13)

If there is no quorum at the expiration of fifteen minutes after the time fixed for a meeting, the meeting may be adjourned to such date as the President may fix. No quorum shall be necessary for a meeting adjourned for want of quorum.

(14)

The members of the Board can participate in a meeting by audio, video or web based systems as available in their organisations including video conferencing.

(15)

The members of the Board shall give their consent/modifications in writing or through email on the draft Minutes of the Board meeting before the same are considered for approval in the next meeting of the Board.

6.

Authentication of Orders and Decision of the Board.

- All orders and decisions of the Board shall be authenticated by the Registrar in his capacity as Secretary of the Board or any other person authorised by the Board in this behalf by a resolution of the Board.

7.

Composition and tenure of the Senate.

(1)

The Senate shall consist of the following members, namely:

(a)

Director, ex-officio Chairperson of the Senate;

(b)

Deans of the Institute, ex-officio;

(c)

adequate number of faculty as decided by the Board with minimum 25 percent as of permanent faculty members;

(d)

Head of Departments and Research Centre, ex-officio; and

(e)

three experts in the field of petroleum and energy having specialised knowledge or operational experience in respect of education, research, engineering and technology, to be nominated by the President in consultation with the Director.

(2)

All members of the Senate, other than those in an ex-officio capacity, shall serve as members for a tenure of two years from the date of their nomination.

(3)

An ex-officio member shall cease to be a member of the Senate as soon as he vacates the office by virtue of which he/she is a member of the Senate.

(4)

Notwithstanding the provisions of sub-statute (2), a member nominated to fill a casual vacancy shall continue as a member for the remainder of the term of the member in whose place he has been nominated.

(5)

No employee of the institute shall be eligible to be a member of the Senate under clause (e) of sub-statute (1).

(6)

The Director in his/her capacity as Chairperson of the Senate shall have the power to invite any person not being a member of the Senate to a meeting of the Senate but such invitee shall not be entitled to vote at such a meeting.

(7)

The Registrar of the Institute shall act as the Secretary of the Senate in an ex-officio capacity.

8.

Powers and Duties of the Senate.

- The Senate shall have the following powers and duties, namely:

(1)

frame and revise curricula and syllabi for the courses of studies for the various academic programmes of the Institute;

(2)

give directions regarding methods of instruction, co-operative teaching among Departments and Centre, evaluation of research and improvement of academic standards;

(3)

make arrangements for the conduct of examinations, appoint examiners, moderators, tabulators and other matters relating to the examination and the like;

(4)

declare the results of the examinations or appoint committees or officers and to make recommendations to the Board regarding the conferment or grant of degrees, diplomas, certificates and other academic distinctions and titles;

(5)

frame Ordinances for matters specified under the Act and the Statutes of the Institute;

(6)

constitute Advisory Committees or Expert Committees or both for Departments, Research Centre and Central Academic Facilities or Units to make recommendations on any academic matter connected with their working;

(7)

constitute Committees from amongst members of the Senate, other academic staff of the Institute and experts from outside to advise on such specific academic matter as may be referred to such committee by the Senate;

(8)

consider recommendations of the Advisory or Expert or other Committees constituted under sub-statue (6) and take such action including the making of recommendations to the Board as circumstances of each case may require;

(9)

make periodical review of the activities of Departments, Research Centres and central academic facilities or units and take appropriate action including the making of recommendations to the Board;

(10)

supervise the working of the library, the computer centre and other central academic facilities of units;

(11)

promote research and consultancy practice within the Institute and the dissemination of knowledge so generated to the community;

(12)

provide for inspection of the classes and the hostels and halls of student residences in respect of the instructions and discipline therein, supervise the co-curricular activities of the students of the Institute and submit reports to the Board;

(13)

arrange psychological counselling and mentoring programs for the benefits of students of the Institute;

(14)

award stipends, scholarships, medals and prizes and make other awards in accordance with the Ordinances and such other conditions as may be attached to particular award;

(15)

make recommendations to the Board with regard to -

(i)

fees and other charges for programs of study at the Institute and for residence in the students' hostels and halls of residence;

(ii)

admission of students to various academic programs of the Institute;

(iii)

the creation of posts on the academic staff and their abolition thereof; and

(iv)

the emoluments and duties attached to such posts; and

(16)

recommend to the Board names for the award of honorary degrees to eminent persons in academics, science, technology, industry, arts, sports, literature, social service and other areas.

9.

Meeting of the Senate.

(1)

The Senate shall meet as often as is necessary but not less than four times during a calendar year.

(2)

The Director shall convene meetings of the Senate in his capacity as the Chairperson of the Senate, either on his own initiative or on a requisition signed by not less than five members or twenty percent of the members, whichever is higher, of the Senate. A requisitioned meeting shall be a special meeting to discuss only those items of agenda for which the requisition has been made. The Chairperson of the Senate shall convene the requisitioned meeting on a date and time convenient to him/her within fifteen days of the submission of such a requisition.

(3)

One-third of Senate including the Chairperson fraction being rounded off to the next higher number, shall be the quorum for a meeting of the Senate.

(4)

The Director, shall preside over meeting of the senate:

Provided that in the absence of the Director, the senior most professor shall preside over the meeting.

(5)

The Secretary of the Senate shall serve a written notice of every meeting to the members of the senate at least two weeks before the meeting. The notice shall state the date, time and place of the meeting:

Provided that the Chairperson of the Senate may call a special or emergency meeting of the Senate at short notice to consider urgent or special issues.

Provided further that - (a) whenever notice of a meeting is required to be given to any person the under provisions of the Act, or of these statutes, it shall be in writing to such person either personally or by serving a copy thereof by registered mail or speed post or courier service charges prepaid, or by facsimile or electronic mail, to the person's address, electronic address, or facsimile number appearing on the books of the Institute; (b) If the notice is served by mail, it shall be deemed to have been given to the person entitled thereto when deposited in the Indian Post and the Telegraph mail or with a courier service for delivery to that person; (c) a notice of meeting shall specify the place, date, and time of the meeting and any other information required by the Act or these Statutes.

(6)

The agenda for all meeting, except those convened at short notice as referred to in sub-statute (5), shall be sent to all members such that it is in their hands at least one week before the date of the meeting.

Provided that, in the case of special or emergency meetings mere mention of the special issue to be considered shall suffice in lieu of the detailed item of the agenda note.

(7)

Notice of motion for inclusion of items on the agenda, if any, together with the detailed item note should be

communicated by individual members to the Secretary of the Senate at least ten days before the date of the meeting. Provided that the Chairperson of the Senate may permit inclusion of any item for which either due notice has been given or for which notice has not been given beyond the deadline stipulated aforesaid.

(8)

At any meeting of the Senate, decisions shall be formalised by means of either a consensus or an affirmative vote of a majority of members, present including the Chairperson of the Senate. If the votes be equally divided, the Chairperson shall have and will cast a second vote.

(9)

The ruling of the Chairperson with regard to all questions of procedure shall be final.

(10)

A decision once taken by the Senate shall not normally be re-opened within one year from the date of the decision: Provided that the Chairperson may move to reconsider the matter within a year under exceptional circumstances.

(11)

The minutes of the proceedings of a meeting of the Senate shall be drawn up by the Secretary of the Senate and circulated within three working days to all members of the Senate:

Provided that any such minutes shall not be circulated, if the Senate considers such circulation as being prejudicial to the interest of Institute. The minutes shall be finalised within the next three days, with or without the members' comments. The minutes, along with amendments, if any, suggested by members shall be placed for confirmation at the next meeting of the Senate. After the minutes are confirmed and signed by the Chairperson of the Senate, they shall be recorded in a minute book which shall be open for inspection by members of the Senate and the Board of Governors at all times during office hours.

(12)

A copy of the agenda and minutes of every meeting of the Senate shall be placed before the Board for its consideration after the Senate has confirmed the same. Any decision or recommendation of the Senate that requires approval of the Board shall be separately highlighted.

(13)

If a non-ex-officio member fails to attend three consecutive meetings of the Senate without leave of absence of the Chairperson of the Senate, he shall cease to be a member of the Senate.

(14)

Proposals relating to matters requiring immediate action may be circulated to members of the Senate with the approval of the Director:

Provided that where five members of the Senate are not in favour of such a proposal or where five members desire that the matter under circulation be discussed at a meeting, a special meeting may be called for that purpose or the matter be placed before the next regular meeting of the senate and no action thereon shall be taken in the meantime:

Provided further that all matters circulated to the Senate between meeting and the decisions arrived at shall be reported at the next meeting of the Senate for confirmation.

10.

Finance Committee.

(1)

There shall be a Finance Committee for the institute consisting of the following members, namely:-

- i. the President of the Board, ex-officio Chairperson;
- ii. one nominee of the Ministry of Petroleum & Natural Gas having expertise in Financial Management;
- iii. one nominee of the General Council having expertise in Financial Management;
- iv. two persons nominated by the Board from amongst its members with at least one having affiliation with a promoting company; and
- v. the Director, ex-officio member.

11.

Powers of the Committee:

The Committee shall broadly be empowered to advise and make recommendations to the Board on all financial matters affecting the functioning of the Institute including review of its financial performance, examination of the annual budget estimate, the annual statement of accounts and the audit report thereto; the preparation of the balance sheet, guiding

resource mobilization and investment management strategies and such other matters in relation to financial management as the Board may entrust to it from time to time.

(2)

The Committee shall meet at least twice in a calendar year.

(3)

The term of office of members nominated under items (ii) and (iii) of sub-statute (1) shall be specified by the nominating authority at the time of their nomination.

(4)

Three members of the Committee shall constitute a quorum for a meeting of the Committee.

(5)

The President, if present, shall preside over meetings of the Committee. In his/her absence, the Director shall preside over the meeting. If neither is present, the meeting shall be adjourned to a later date.

(6)

The Registrar of the Institute shall act as the Secretary of the Committee in an ex-officio capacity.

(7)

The provisions of these Statutes regarding notice of meetings, inclusion of items on the agenda and confirmation of the minutes applicable for meetings of the Board shall be followed, as far as possible, in connection with meetings of the Committee.

(8)

A copy of the agenda and minutes of every meeting of the Committee shall be placed before the Board for its information.

12.

The President.

-

(a)

Appointment of the President. - (1) The President shall be appointed by the Central Government on the recommendation of a five member Search Committee set up by the Central Government consisting of:

(i)

the Chairperson of the General Council who shall also be the Convener of the Committee;

(ii)

two representatives of the promoting companies who are contributing for the endowment fund, at the level of Chairman and Managing Director nominated by the General Council; and

(iii)

two members of the Board nominated by it.

(2)

The President shall normally be an individual who has gained distinction in his/her professional life and preferably has academic, research or operational experience in the broad domain of petroleum technology including energy and hydrocarbon development. In addition, he should be an individual who has a true understanding of the nature of professional education and commands public confidence.

(3)

The President shall hold office for a term of three years.

(b)

Powers of the President. - (1) In emergent cases, the President may exercise the powers of the Board and subsequently inform the Board of the action taken by him/her on its behalf for its approval.

13.

The Director.

(1)

The Director shall be a whole time salaried officer of the Institute.

(2)

The Director shall normally be a person who is an internationally or nationally acknowledged academic leader with experience in the field of petroleum and energy sector, who fulfils the academic and experience requirements as

suitable to the post of Director at an Indian Institute of Technology, and has a demonstrated track record of being a visionary and an inspirational leader.

(3)

The Director shall be appointed by the Central Government on the recommendation of a five-member Search Committee setup by the Board of consisting of:-

(i)

Chairperson of the General Council, ex-officio, who shall preside over the meeting;

(ii)

the President, ex-officio, who shall also be the Convener of the Committee;

(iii)

the Director of Indian Institute of Technology, Kharagpur;

(iv)

the Director of Indian Institute of Sciences, Bangalore; and

(v)

one representative of the promoting companies at the level of Chairman and Managing Director nominated by the General Council.

(4)

The Director shall be appointed for a period of five years or till the time he superannuates whichever is earlier. The retirement age will be seventy years. However, at the time of appointment, it shall be ensured that the appointee has a minimum period of three years to serve as the Director:

Provided that the Central Government may direct that the Director, whose term has expired, to continue in office for such period not exceeding a period of one year, as may be specified in that direction.

(5)

In case a vacancy in the office of the Director occurs due to death, resignation, retirement or otherwise and it cannot be conveniently filled in accordance to the provisions of sub-statute (3), the President may, under intimation to the Central Government appoint the senior-most Dean or the senior most Professor present to perform the duties of the Director until a new Director assumes office.

(6)

Other terms and conditions of service of the Director, including the salary and other allowances admissible to him, shall be such as per those followed for the Director of IIT from time to time. The pay of Director, IPE shall be Rs.2,25,000/- per month as revised from time to time.

14.

Powers and Duties of the Director.

(1)

Subject to budget provisions made for a specific purpose, the Director shall have the power to incur expenditure in accordance with the procedure laid down by the Board from time to time.

(2)

The Director shall have the power to appropriate funds with respect to different items constituting the recurring budget upto a monetary limit fixed by the Board from time to time for each item:

Provided that such re-appropriation will not involve increase in the budget and any liability in future years.

Provided further that every such re-appropriation shall, as soon as possible, be reported to the Board.

(3)

The Director shall have the power to waive recovery of over-payment up to Rs.1000/- to a member of the staff, which is not detected within twenty-four months from the date of payment subject to such stipulations as may be laid down by the Board from time to time. Every such waiver shall, as soon as possible, be reported to the Board.

(4)

The Director, where he is the approving authority, shall have the power to write off irrecoverable losses up to Rs.2000/- and of irrecoverable value of store items lost or rendered unserviceable due to normal wear and tear up to Rs.5000/- in any individual case subject to such stipulations as may be laid down by the Board from time to time.

(5)

The Director, where he is the approving authority shall have the power to fix, on the recommendations of the Selection

Committee, the initial pay of an incumbent at a scale higher than the minimum of the scale, but not involving more than five increments, in respect of posts to which appointment can be made by him/her, given that the same are to be reported to the Board.

(6)

The Director shall have the power to employ technicians and workmen paid from contingencies involving emoluments not exceeding the Central Government approved daily wage rates.

(7)

The Director shall have the power to send members of the staff for training or to attend the course of instruction Inside India subject to such terms and conditions as may be decided by the Board from time to time.

(8)

The Director shall have the power to sanction remission or reduction of rent for buildings rendered wholly or partially unsuitable as per recommendations of the concerned Committee.

(9)

The Director shall have the power to sanction temporary allocation of any building for any purpose other than that for which it was constructed.

(10)

In exceptional cases, subject to availability of funds, the Director shall have the power to create temporary posts with the approval of the President, for not more than two years' duration on approved scales of pay under report to the Board provided that no such post, of which the Director is not the appointing authority, shall be so created.

(11)

The Director shall have the power of Head of Department for purposes of rules in the Account Code, the Fundamental and Supplementary Rules and other rules of the Government of India in so far as they are applicable or may be made applicable to the conduct of the business of the Institute.

(12)

If, for any reason, the Registrar is temporarily absent for a period not exceeding one month, the Director may take over or assign to any member of the staff of the Institute, any of the functions of the Registrar as he deems fit.

Provided that if, at any time, the temporary absence of the Registrar exceeds one month the Board may, if it thinks fit, authorise the Director to take or assign the function of the Registrar as aforesaid, for a period exceeding one month.

(13)

All contracts for and on behalf of the Institute, except the one between the Institute and the Director shall, when authorized by a resolution of the Board passed in that behalf, be in writing and be expressed to be made in the name of the Institute, and every such contract shall be executed on behalf of the Institute by the Director, but the Director shall not be personally liable in respect of anything under such contract.

(14)

The Director may, during his absence from headquarters, authorise one of the Deans or the senior most Professor present, to sanction advances for travelling allowance, contingencies and medical treatment of the staff and countersign bills on his/her behalf and authorise him/her for assuming such powers of the Director as may be specifically delegated to one of the Deans or the senior most Professor by him/her in writing.

(15)

The Director may, at his discretion, constitute such Committees as he may consider appropriate, for the administrative and academic activities.

(16)

In the event of the occurrence of any vacancy in the office of the President by reason of his death, resignation, or otherwise or in the event of the President being unable to discharge his functions owing to absence, illness or any other cause, the Director may also discharge the functions assigned to the President under section 19 of the Act.

(17)

The Director may, with the approval of the Board, delegate any of the powers, responsibilities and authorities vested in him by the Act and Statutes to one or more members of the academic or administrative staff of the Institute.

(18)

On matters requiring immediate action, the Director shall take such action as he deems necessary, and shall thereafter report the action taken to such authority or body as would have in the ordinary course dealt with the matter.

15.

The Registrar.

(1)

The Registrar shall be appointed by the Board on the recommendation of a Selection Committee constituted for the purpose by the Board.

(2)

The emoluments and other terms of conditions of service of the Registrar, including the age of superannuation, shall be such as per those followed for the Registrar of IIT from time to time. Registrar of IPE shall be in the pay scale of L-14 of Rs.1,44,200 to Rs.2,18,200/- as revised from time to time.

(3)

When the office of the Registrar is vacant or when the Registrar is; by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Director may appoint for the purpose.

(4)

The Registrar shall serve as the ex-officio Secretary of the General Council, the Board, the Senate, the Finance Committee and such other committees as constituted by the Board but shall not be deemed to be a member of any of these authorities.

(5)

It shall be the duty of the Registrar:

(i)

to be the custodian of the records, the common seal and such other property of the Institute as the Board may commit to his/her charge;

(ii)

to issue notices convening meetings of the various authorities of the Institute of which he is the ex-officio Secretary as well as of any committee appointed by these authorities;

(iii)

to prepare and circulate agenda items and minutes of the meeting after the approval of the Director;

(iv)

to keep minutes of all meetings of the various authorities of the Institute of which he is the ex-officio Secretary as well as of any committee appointed by these authorities;

(v)

to handle official correspondence on behalf of the authorities of the Institute;

(vi)

to provide to the Central Government, copies of the agenda of meetings of the authorities of the Institute as soon as they are issued and thereafter the minutes of such meetings;

(vii)

to represent the Institute in law suits or legal proceedings by or against the Institute, sign powers of attorney and verify pleadings or depute his/her representative for the said purpose; and

(viii)

to perform such other duties as may be assigned to him from time to time by the Board or the Director.

(6)

The Registrar shall be responsible to the Director for the proper discharge of his duties.

16.

The Deans.

- The Deans shall be appointed by the Board on the recommendations of the Director from amongst the Professors of the Institute, to assist the Director in specific areas of academic and administrative management, in addition to his own duties as Professor.

17.

Cadre structure and qualification of teachers and other staff.

- The cadre structure and qualifications of the teaching and research faculty shall be as may be prescribed from time to time by the Board which may take into account the standards followed by the Indian Institutes of Technology.

18.

Classification of members of office staff.

(1)

Except those persons engaged as per contingency requirements, all members of staff of the Institute shall be classified under:

(a)

Academic staff: - shall include Director, Professor, Associate Professor, Assistant Professor, Research Scientist/Engineer Chief/Principal/ Senior to be prefixed for higher cadre levels) Librarian, Deputy Librarian and Assistant Librarian.

(b)

Technical staff: - shall include Workshop Superintendent, Assistant Workshop Superintendent, Chief Technology Officer, Technology Officer, Assistant Technology Officer, Operations / Systems Manager, Systems Programmer, Programmer, Foreman, Technical Assistant, Laboratory Assistant, Mechanic, Horticulture Assistant, Draftsman, Institute Engineer, Physical Training Instructor, Resident Engineer and Assistant Resident Engineer and Research Associate.

(c)

Administrative and other staff: - shall include Registrar, Senior Administration Officer, Administration Officer, Assistant Administration Officer, Finance Officer, Chief Accounts Officer, Accounts Officer, Superintendent, Steno-Typist, Office Assistant, Medical Officer, Pharmacist, Nurses and Caretaker.

19.

Appointments.

(1)

There shall be a Selection Committee appointed by the Board or by the Director for making recommendations to the competent appointing authority, as specified in section 31 of the Act, for making direct recruitment against a sanctioned post of the Institute as well as for placement/promotion of an existing employee to a higher post under any Career Advancement Scheme/Merit Promotion Scheme that may be adopted or promulgated by the Board.

Notwithstanding anything contained in these Statutes hereinabove, the Board may, on the recommendation of the Director, invite a person of high academic distinction and professional attainment to accept a post of Dean Professor or Associate Professor or equivalent post of faculty position in teaching and research in the Institute, against a sanctioned position, on such terms and conditions as it deems fit.

(2)

The Institute shall make necessary provisions for the reservations in recruitment as laid down by the Board in accordance with Government of India policies issued in this regard from time to time.

20.

Terms and conditions of service of Permanent Employees.

- All employees of the Institute shall be governed by the following terms and conditions of service namely: -

(i)

every appointment shall be subject to the condition that the appointee is certified as being in sound health and physically fit for service in India by a medical authority nominated by the Board:

Provided that the Board may for sufficient reasons, relax the medical requirements in any particular case or cases or dispense with such medical examination in any case or class of cases subject to such conditions, if any, as may be laid down by the Board;

(ii)

all appointments under the Institute shall ordinarily be made on temporarily for a period of one year after which period the appointee, shall be confirmed in the same post and continue to hold his office he attains the age of superannuation:

Provided that the Board with the prior approval of the General Council, considers that in the interest of the students and for the purpose of teaching and guiding the students registered for the Ph.D. programme, any member of the academic staff be re-employed, it may re-employ for a period not exceeding one year till the end of the semester or the academic session as may be considered appropriate in the circumstances of each case:

Provided further that where it becomes necessary to re-employ any such member beyond the end of the semester or academic session as the case may be, the Board may, with the prior approval of the General Council, reemploy any such member for such further period not exceeding one year at a time as may be deemed necessary and in no case

exceeding the end of the academic session in which he attains the age of seventy years:

Provided also that in no circumstances such person shall be reemployed for any purposes other than teaching and guiding the students registered for the Ph.D. programme;

(iii)

at any time after an employee has completed twenty years' qualifying service, he may by giving notice of not less than three months in writing to the appointing authority, retire from service on the terms and conditions laid down by the Central Government from time to time for its own employees;

(iv)

The appointing authority shall have the power to extend the period of probation of any appointee for such periods as may be found necessary but not exceeding two years:

Provided that if, after the extended period of probation, the appointee is neither confirmed nor his/her services terminated, he/she shall, on the 30th day thereafter, be deemed to have been confirmed;

(v)

an employee of the Institute shall devote his/her whole time to the service of the Institute and shall not engage, directly or indirectly, in any trade or business or any other work which may interfere with the proper discharge of his/her duties, but the prohibition herein contained shall not apply to academic work and consultative practice undertaken with the prior permission of the Director, and/or in accordance with the procedures laid down by the Board from time to time;

(vi)

the appointing authority shall have the power to terminate the services of any member of the staff without notice and without any cause assigned thereto during the period of probation.

(vii)

the appointing authority shall have the power to terminate the services of any member of the staff by three months' notice or on payment of three months' salary in lieu thereof, if found medically unfit as certified by the medical authority nominated by the Board.

(viii)

the Board shall have the power to terminate the services of any member of the staff on grounds of retrenchment by giving to the person concerned six months' notice in writing or on payment of six months' salary in lieu thereof.

(ix)

an employee of the Institute may resign by giving the appointing authority three months' notice, provided that the appointing authority may for sufficient reasons, either reduce this period or call upon the employee concerned to continue till the end of the academic session in which the notice is received.

(x)

If, the Board with the prior approval of the General Council, may announce a suitable voluntary separation scheme for the staff.

(xi)

a member of the staff appointed at the Institute may be placed under suspension and/or disciplinary proceedings may be started against him/her as per the procedure prescribed in the Rules framed under section 32(k) of the Act.

(xii)

the employees of the Institute shall be entitled to travelling and daily allowances according to the pay fixed by the Board from time to time under section 32(o) of the Act.

(xiii)

the employees of the Institute shall be entitled to reimbursement of medical expenses incurred on themselves and their dependents.

(xiv)

the employees of the Institute shall be governed by the Conduct Rules framed under section 32(k) of the Act.

21.

Conferment and withdrawal of Degrees, Diplomas, Honorary Degrees, etc.

(1)

The Board may, on the recommendation of the Senate, approve the conferment of Degrees, Diplomas, Honorary Degrees, etc.

(2)

The Board may, on the recommendation of the Senate, by a special resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw any degree, academic distinction and honorary degrees conferred or any certificate or diploma awarded by the Institute for good and sufficient cause:

Provided that no such resolution shall be passed until a notice has been given to that person calling upon him/her to show cause within such time as may be specified in the notice why such a resolution should not be passed and until his/her objections, if any, and any evidence he may produce in support of them, have been considered by the Board.

22.

Faculties of study.

(1)

The academic activities at the Institute shall be instituted under the following faculties of study:

(a)

Faculty of Engineering and Technology;

(b)

Faculty of Management Studies;

(c)

Faculty of Applied Sciences and Humanities; and

(d)

Any other faculties as approved by the Board.

(2)

The faculties of studies shall impart instruction and undertake academic research in appropriate branches of Learning, within the ambit of the Institute, at the baccalaureate, master, postgraduate diploma and doctoral levels.

(3)

The Faculties shall have a number of constituent divisions under the following heads:

(a)

Departments whose primary activities shall be disciplinary and interdisciplinary teaching and academic research;

(b)

Centres of Research whose primary activities shall be to carry out sponsored research and development in areas of industrial and national thrust leading to transfer of technology to the user system; and

(c)

Central Academic Service Facilities or Units whose primary activity shall be the management of specific academic facilities required by the students and faculty of more than one department research centre.

(4)

The Board, on the recommendation of the Senate shall have the power to establish or abolish one or more departments or centre of research or central academic service facility or unit.

(5)

As the head of the faculty, Dean shall be responsible for coordination of the teaching and research activities of the departments and research centres and for of the teaching and research standards. He shall also perform such other duties as may be assigned to him/her by the Director.

(6)

Each of the constituent divisions of a faculty of shall be headed by a Head who shall be appointed by the Director in the manner provided hereunder in the statutes and every such head shall be deemed to be an officer of the Institute within the meaning of the Act.

(7)

Head of a Department shall be appointed by the Director from amongst the Professors and Associate Professors of the said Department of the institute. in the case of Centres of Research, the Head shall be appointed from amongst the Professors and Associate Professors and Research Scientists or Engineers of the concerned Centre.

(8)

In the case of Central Academic Service Facilities or Units, the Head shall be appointed by the Director from amongst the Institute's faculty or technical staff having appropriate expertise.

(9)

Notwithstanding the provisions contained in sub-statute (5) of this statute, when in the opinion of the Director the

situation so demands, the Director may himself/herself take temporary charge of a Department or Centre of Research or place it under the charge of the Dean of the concerned Faculty of Studies or a Professor or Chief Scientist or Engineer from another Department or Centre of Research for a period not exceeding six months.

(10)

The term of office of a Head shall be three years from the date on which he/she enters upon his office and shall be eligible for a re-appointment.

(11)

The head of the division shall be responsible for the entire working of the particular academic division of which he is the Head, subject to the general control of the Director. Furthermore, it shall be the duty of the head to see that decisions of the authorities of the Institute and the Director, as may be applicable to the academic division under his/her charge, are implemented out. He/she shall also perform such other duties as may be assigned to him/her by the Director.

23.

Gifts to the Institute.

- Gift acceptance, Gift processing, Donor rights, Management of funds, Government matching grant, Gift purpose, Naming opportunities shall be as per the Regulations approved by the Board of Governors.

24.

Discipline with respect to the students.

- Disciplinary powers, circumstances giving rise to disciplinary proceedings, Summary action, Appeals, Notice of Decisions, Liability of the Institute and the like shall be as per the procedures laid down by the Senate. With regard to appeals by students, the same shall be considered and disposed of as per procedure / norms that shall be framed by the Senate from time to time.

25.

Research Centre.

- A Research Centre shall be established by the Institute with the approval of the Senate, on its own or jointly with government, academic and/or industrial partners, as the need arises. The Research Centre shall function as set out by the Senate and with a high degree of autonomy.

The mission of a Research Centre shall be to mount major research and development effort to develop excellence in identified research areas, which are of multi-disciplinary nature and not readily manageable by a single Faculty or Department.

The Director may constitute an Advisory Board of national and international experts to provide advice on issues related to research and to periodically review the progress made. A Research Centre will be headed by a Dean appointed by the Director.

26.

Indemnity.

(a)

The honorary officers, members of the Council, members of Committees or Sub-Committees, Director, auditors and other senior staff of the Institute may be indemnified out of the funds of the Institute against any expenses or liability incurred by them in or about the discharge of their respective duties;

(b)

The Indemnification provided by or pursuant to these Statutes shall continue as to a person who has ceased to be a trustee, officer or member of the Investment Board or other indemnified person and shall inure to the benefit of the heirs, executors or administrators of such a person.

27.

Liability of the Institute.

- The Institute, its officers, or any other person or entity associated with them shall have no liability whatsoever for any losses, damages, claims, legal costs or other expenses that a person concerned may suffer or incur, whether directly or indirectly (including any loss of profit or any damage to reputation) by reason of any disciplinary proceedings instituted or summary action of disciplinary action taken pursuant to this statute and the publication or notification of any information relating thereto.

Related AI tags, queries and research notes

Translation